IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH – II, CHENNAI

CA(CAA)/75/2025
in
CP(IB)/1307/CHE/2018

(filed under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the companies Act, 2013 and rules framed thereunder)
In the matter of ***Jeypore Sugar Company Limited***

S. Hari Karthik
Liquidator, The Jeypore Sugar Company Limited
No.3, A-Block, Tamil Nadu Police Housing Qtrs,
Bharathi Avenue 2nd St, Kottur, Chennai-600085
Tamil Nadu, India

… Applicant

Order pronounced on ***12th November 2025***

CORAM:

JYOTI KUMAR TRIPATHI, MEMBER (JUDICIAL)
RAVICHANDRAN RAMASAMY, MEMBER (TECHNICAL)

For Applicant : J. Manivannan

O R D E R
(Heard through Hybrid Mode)

This application has been filed by the Liquidator of **Jeypore Sugar Company Limited** being the Company Under Liquidation under Section 230 and other applicable provisions of the Companies Act, 2013 read with regulation 2B of the IBBI (Liquidation Process) Regulations, 2016, The Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the NCLT Rules, 2016, seeking the following reliefs:

i) Take on record the outcome of the e-voting results of the Stakeholders' Consultation Committee ("SCC") concluded on 06.08.2025, pursuant to the directions of this Hon'ble Tribunal dated 17.11.2021, read with the Order of the Hon'ble NCLAT dated 16.01.2024, together with the Minutes of the SCC Meeting held on 22.07.2025; and the detailed voting statement, including member-wise participation and percentage of votes cast in favour of the Composite Scheme of Compromise and Arrangement submitted by Standard Assets India Private Limited for the revival of The Jeypore Sugar Company Limited (in Liquidation) and record that the statutory requirements under Section 230(6) stand satisfied.

ii) Take on record the outcome of the e-voting results of the Secured Financial Creditors ("SFCs") concluded on 15.09.2025, pursuant to the directions of this Hon'ble Tribunal vide Order dated 17.11.2021, read with the Order of the Hon'ble NCLAT dated 16.01.2024, together with the Minutes of the SFCs' Meeting held on 28.07.2025, including the extension granted for completion of the voting process; and the detailed voting statement, setting out the member-wise participation and percentage of votes cast in favour of the Composite Scheme of Compromise and Arrangement submitted by Standard Assets India Private Limited for the revival of The Jeypore Sugar Company Limited (in Liquidation) and record that the statutory requirements under Section 230(6) stand satisfied.

iii) Hold and declare that the requirements of Section 230(2) and Section 230(6) of the Companies Act, 2013, stand duly complied with in respect of the Secured Financial Creditors, the Stakeholders' Consultation Committee, and all other stakeholders, including the shareholders of the Corporate Debtor, in relation to the approval of the Composite Scheme of Compromise and Arrangement submitted by Standard Assets India Private Limited for the revival of The Jeypore Sugar Company Limited (in Liquidation), and that no further meetings or approvals are required.

iv) Dispense with the requirement of convening any further meetings of the Secured Financial Creditors (SFCs) and the Stakeholders' Consultation Committee (SCC), since the Scheme has already been approved since the Scheme has already been approved with an overwhelming majority of both the SFCs and SCC. Also dispense with the meeting of the Shareholders of the Corporate Debtor, in line with the principles enshrined in Section 30 of the Insolvency and Bankruptcy Code, 2016, which provides that approval of shareholders shall be deemed to have been accorded upon approval of the resolution plan by the Committee of Creditors. Consequently, permit the Applicant to proceed directly with the filing of the Second Motion Application for sanction of the Composite Scheme of Compromise and Arrangement submitted by Standard Assets India Private Limited for the revival of The Jeypore Sugar Company Limited (in Liquidation) without the requirement of any further meetings or approvals.

v) *Pass such further or other order(s) as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case and in the interest of justice.*

2. It is submitted that this tribunal vide order dated 25.02.2019, in CP/1307/IB/2018, admitted the corporate debtor ***Jeypore Sugar Company Limited***, into CIRP Corporate Insolvency Resolution Process ("CIRP") and appointed Mr. V. Venkata Sivakumar as the Interim Resolution Professional ("IRP"). It is stated that vide order dated 01.07.2022 the Applicant herein, Mr S. Hari Karthik, was appointed as the Liquidator of the Corporate Debtor to carry out the liquidation process in accordance with law.

3. It is submitted that the Former Liquidator, had initiated a Scheme of Revival Process under Sections 230-232 of the Companies Act, 2013, read with Regulation 2B of the IBBI (Liquidation Process) Regulations, 2016. In response to the same three Scheme Proponents-namely, (i) Kineta Global Limited (in consortium with Power Mech Projects Limited), (ii) AARIA Projects Limited, and (iii) Synergy Holdings expressed their interest and submitted their respective Schemes of Compromise and Arrangement under Sections 230-232 of the Companies Act, 2013.

4. This tribunal in order dated 17.11.2021 in IA(IBC)/255(CHE)/2021 in CP/1307/IB/2018, directed that (a) the Rayagada lands be included in the Asset Memorandum, (b) A fresh valuation be conducted, and (c) A fresh Scheme Process under Section 230 be initiated thereafter.

5. It is submitted that the applicant reconstituted the SCC strictly in line with Regulation 31A, excluding the SFCs from its membership. The reconstituted SCC was approved by this tribunal vide its order dated

05.01.2024 in IA (IBC)/2429 (CHE)/2023, read with Order dated 11.12.2024 in IA (IBC)/560(CHE)/2024 and IA (IBC)/635(CHE)/2024.

6. It is submitted that a total extent of 784 acres of Rayagada lands belonging to the corporate debtor is presently a subject matter of the proceedings under the Orissa land reforms Act 1960. In this, the Government has confirmed 278.21 acres as legally sustainable for restoration in favor of the Corporate Debtor, while the balance 506.69 acres remains under dispute and is pending adjudication in the OLR proceedings. Accordingly, for the purpose of the Scheme valuation, two scenarios were presented to the stakeholders:

   Scenario I - Valuation assuming restoration of the entire 784 acres, purely for reference purposes; and

   Scenario II - Valuation restricted to 278.21 acres, based on the Government's confirmation, which is considered the legally sustainable and prudent basis.

7. It is submitted that the applicant had issued a public announcement dated 29.01.2024 in Dinamani (Tamil), Eenadu (Telugu), Dharitri (Odiya) which was published on 30.01.2024 and Business Standard (All India) on 31.01.2024 thereby inviting Expressions of Interest (EOIs) from prospective scheme proponents. It is submitted that in response to the invitation for Expression of Interest, multiple response to the EOI were received, The schemes were circulated to both the SCC and the SFCs for their deliberation and comments.

8. The list of the stakeholders as submitted by the applicant in the application is extracted below,

S. No.	Secured Financial Creditors	Security Relinquished Yes/No	Amount Claimed (in Rs.)	Claim Admitted (in Rs.)
1	IDBI Bank Ltd GM, IDBI Bank Ltd, NPA Management group, #115 Anna Salai, Saidapet, PO 805, Chennai – 600015 S.CHRISTOPHER@idbi.co.in	No	2,49,01,01,272	2,49,01,01,272
2	Bank of India Chief Manager, Bank of India, Asset Recovery branch, 4th Floor, No. 30 Star House, Errabalu St, Chennai – 600001 arb.chennai@bankofindia.co.in	No	1,07,14,12,360	1,07,14,12,360
3	Pridivi ARSCL* VP, Pridhvi Asset Reconstruction & Securitisation Company Ltd. (PARAS), D.No. 1-55, 4th Floor, Wing-I, Raja Praasadamu, Masjid Banda road, Kondapur, Hyderabad – 500084 ramakrishnaprasadkv@paras.org.in	No	85,87,43,562	85,87,43,562
4	Bank of Baroda AGM, Bank of Baroda, Corporate Financial Services Branch, BOB building, II Floor, 74 Theagaraya nagar, Near Panagal Park, Chennai – 600017 infima@bankofbaroda.com	No	60,41,76,889	60,41,76,889
5	Indian Overseas Bank IOB, Asset Recovery Management branch, Ground floor, Central Office Building, 763 Anna Salai, Chennai - 600002 iob1535@iob.in	No	46,24,54,525	46,24,54,525
6	DCCB** CEO, District Cooperative Central Bank Ltd, RR peta, Eluru, West Godavari, AP dccb.eluru@gmail.com	No	22,81,73,934	22,81,73,934
	Total		5,71,50,62,542	5,71,50,62,542

* Pridivi Asset Reconstruction & Securitisation Company Limited

** District Cooperative Central Bank ltd, Eluru

Government dues

S. No	Name of Creditors	Category	Amount Claimed as per records (In Rs.)	Claim amount Admitted in Liquidation (In Rs.)
1	Central Tax & Central Excise, Eluru, West Godavari, AP Office of Dy. Commissioner, Central Tax & Central Excise, Eluru CGST Division, Yerrapragada Vari st, Ashok Nagar, Eluru, West Godavari Dist – 534002	Government Dues	12,54,91,890	12,54,91,890
2	Commercial Tax Department, Eluru, West Godavari, AP Asst. Commissioner of Commercial Taxes, Large Taxpayers Unit, Office of the Dy. Commissioner of Commercial Taxes, 2nd Floor, Usha Bala complex, John St, Narashimarao Pet, Eluru, West Godavari – 534006 ac_ltu_elr_apct@gov.in	Government Dues	3,62,68,847	3,62,68,847
3	Dy. Commissioner of CT & GST, CT & GST Circle, Rayagada, Odisha – 765001* dcctrayagada@odishatax.gov.in	Government Dues	1,01,23,332	1,01,23,332
4	CT & GST Circle, Rayagada, Odisha – 765001 dcctrayagada@odishatax.gov.in	Government Dues	3,18,862	3,18,862
5	CGST & CENTRAL EXCISE, Rayagada, Odisha **	Government Dues	68,88,875	68,88,875
	Total		**17,90,91,806**	**17,90,91,806**

Operational creditor

S. No	Name of Creditors	Category	Amount Claimed as per records (In Rs.)	Claim amount Admitted in Liquidation (In Rs.)
1	Trade Deposits Cane Growers	Operational Creditor - Unsecured	1,53,39,600	1,53,39,600
2	Vijay Kumar & Co (Jute) Pvt Ltd PO No. 2523, 34A, Brabourne Road, Kolkata – 700001 vkcjut@gmail.com	Operational Creditor – Unsecured	1,23,74,018	74,09,320
3	Rochem Separation Systems (India) Pvt Ltd 101 HDIL Towers, Anant Kanekar Marg, Bandra East, Mumbai – 400051 cs@rochem.in	Operational Creditor – Unsecured	1,59,35,816	77,33,053
	TOTAL		**4,36,49,434**	**3,04,81,973**

9. It is submitted based on the EOIs the scheme was submitted from Finquest Financial Solutions Pvt Ltd., Devi Sea Foods Ltd., Sravan & Co., and MRN Chamundi Canepower & Biorefineries Pvt ltd subsequently vide order dated 13.06.2025 in (IA(IBC)/915(CHE)/2025), additional participants were admitted which are Kineta Global Ltd., Standard Assets India Pvt Ltd. (SAIPL), Auro Infra Ltd., and Shree Jayatheertha Enterprises Pvt Ltd.

10. It is submitted that Standard Assets India Pvt Ltd. (SAIPL), has submitted its complete scheme on 29.06.2025 within the timeline. It is submitted that on completion of the evaluation process, the SCC (31.07.2025 to 06.08.2025) and SFCs (31.07.2025 to 15.09.2025) undertook independent voting in accordance with Regulation 31A of the IBBI (Liquidation Process) Regulations, 2016 and Section 230(6) of the Companies Act, 2013. Based on the results of the e-voting, the Scheme submitted by Standard Assets India Private Limited (SAIPL) was declared the H1 Scheme proponent:

- *By the SCC with 93.95% votes in favour, in compliance with Regulation 31A, read with Section 230(6) of the Companies Act, 2013.*
- *By the SFCs with 81.25% votes in favor, Based on members present and voting.*

11. FINANCAIL STRUCTURE OF THE SCHEME

S. No.	Class of Stakeholders ("Stakeholders")	Admitted Claim by Liquidator (₹ Cr.)	Distribution of Amounts under the Scheme (₹ Cr.)	% of Claim Being Paid under the Scheme	Timeline for Payment
1	CIRP & Liquidation Costs	14.00	14.00	100.00%	Within 30 Business Days from the date of receipt of a certified true copy of the NCLT approval order of the Scheme.
2	Provident Fund	7.24	7.24	100.00%	Within 30 Business Days from the date of receipt of a certified true copy of the NCLT approval order of the Scheme.
3	Gratuity	11.54	11.54	100.00%	Within 30 Business Days from the date of receipt of a certified true copy of the NCLT approval order of the Scheme.
4	Workmen & Employees	30.64	27.58	90.00%	Within 30 Business Days from the date of receipt of a certified true copy of the NCLT approval order of the Scheme.

5	Secured Financial Creditors (SFCs)	571.51	315.00	55.12%	Within 30 Business Days from the date of receipt of a certified true copy of the NCLT approval order of the Scheme.
6	Statutory & Government Dues	17.91	1.79	10.00%	Within 30 Business Days from the date of receipt of a certified true copy of the NCLT approval order of the Scheme.
7	Operational Creditors	3.05	0.85*	27.86%	Within 30 Business Days from the date of receipt of a certified true copy of the NCLT approval order of the Scheme.
8	Unsecured Financial Creditors	-	-	-	-
9	Equity Shareholders	4.53	-	0.00%	-
10	Working Capital / Capex	-	150.00	-	To be infused over a period of time from the date of NCLT approval
	Total Value of the Financial Proposal: ₹ 528.00 Crores				

12. ***The Rationale of the Scheme as provided by the Applicant is extracted as under:***

The present arrangement is with the objective of reviving the Company as a going concern and maximization of value for creditors, employees, and other stakeholders. By Maximization of Stakeholder Value, Preservation of Industrial Assets and Operations, Employment Creation, Revenue Contribution.

13. The details of the assets of the company as submitted by the applicant is extracted herein under,

Location / Asset Class	Book Value (₹) as at 31.03.2018	Realizable Value based on valuations (₹)	% of Total Value	Security / Charge
Land & Building				
Chagallu Sugar Factory (Land & Building)	36,70,85,615 (Collectively)	94,27,75,771	16.29%	Consortium of Banks
Chagallu Distillery (Land & Building)		63,28,95,197	10.94%	Bank of India (Exclusive)
Pothavaram (Land & Building)		52,24,83,824	9.03%	Consortium of Banks
Jangareddygudem (Land & Building)		59,88,35,364	10.35%	Consortium of Banks
Rayagada (Land & Building – 278 acres) *		2,07,47,77,323	35.86%	Freehold / No Lien
Gujarat (Land & Building)		76,55,426	0.13%	Freehold / No Lien
Plant & Machinery				
Chagallu Sugar Factory (Plant & Machinery)	54,26,33,296 (Collectively)	38,10,70,038	6.59%	Consortium of Banks
Chagallu Distillery (Plant & Machinery)		5,18,85,414	0.90%	Bank of India (Exclusive)
Pothavaram (Plant & Machinery)		52,22,26,219	9.03%	Consortium of Banks
Jangareddygudem (Plant & Machinery)		2,60,48,704	0.45%	Consortium of Banks
Rayagada (Plant & Machinery)		2,01,78,050	0.35%	Freehold / No Lien
Securities & Financial Assets**	**19,63,332**	48,80,551	0.08%	Free from Encumbrances
TOTAL		**578,57,11,881**	**100.00%**	

14. Heard the counsel for the applicant and considered the documents annexed along with the application.

15. Regulation 2B provides for compromise or arrangement. It reads as

Where a compromise or arrangement is proposed under section 230 of the Companies Act, 2013 (18 of 2013), it shall be completed within ninety days of the order of liquidation under section 33:

PROVIDED that a person, who is not eligible under the Code to submit a resolution plan for insolvency resolution of the corporate debtor, shall not be a party in any manner to such compromise or arrangement.

2) The time taken on compromise or arrangement, not exceeding ninety days, shall not be included in the liquidation period.
3) Any cost incurred by the liquidator in relation to compromise or arrangement shall be borne by the corporate debtor, where such compromise or arrangement is sanctioned by the Tribunal under sub section (6) of section 230:
PROVIDED that such cost shall be borne by the parties who proposed compromise or arrangement, where such compromise or arrangement is not sanctioned by the Tribunal under sub-section (6) of section 230.].

16. Section 230 of the Companies Act, 2013 provides power to compromise or make arrangements with Creditors and Members. Section 230(1) reads as under:

> *1). Where a compromise or arrangement is proposed-*
> *a) between a company and its creditors or any class of them; or*
> *b) between a company and its members or any class of them,*
> *the Tribunal may, on the application of the company or of any creditor or member of the company, or in the case of a company which is being wound up, of the liquidator appointed under this Act or under the Insolvency and Bankruptcy Code, 2016, as the case may be, order a meeting of the creditors or class of creditors, or of the members or class of members, as the case may be, to be called, held and conducted in such manner as the Tribunal directs. Explanation.- For the purposes of this sub-section, arrangement includes a reorganisation of the company's share capital by the consolidation of shares of different classes or by the division of shares into shares of different classes, or by both of those methods*
> *(3) Where a meeting is proposed to be called in pursuance of an shall be sent to all the creditors or class of creditors and to all the members or class of members and the debenture-holders of the company, individually at the address registered with the company which shall be accompanied by a statement disclosing the details of the compromise or arrangement, a copy of the valuation report, if any, and explaining their effect on creditors, key managerial personnel, promoters and non promoter members, and the debenture-holders and the effect of the compromise or*

arrangement on any material interests of the directors of the company or the debenture trustees, and such other matters as may be prescribed:

Provided further that where the notice for the meeting is also issued by way of an advertisement, it shall indicate the time within which copies of the compromise or arrangement shall be made available to the concerned persons free of charge from the registered office of the company.

(4) A notice under sub-section (3) shall provide that the persons to whom the notice is sent may vote in the meeting either themselves or through proxies or by postal ballot to the adoption of the compromise or arrangement within one month from the date of receipt of such notice: Provided that any objection to the compromise or arrangement shall be made only by persons holding not less than ten per cent. of the shareholding or having outstanding debt amounting to not less than five per cent. of the total outstanding debt as per the latest audited financial statement.

(5) A notice under sub-section (3) along with all the documents in such form as may be prescribed shall also be sent to the Central Government, the income-tax authorities, the Reserve Bank of India, the Securities and Exchange Board, the Registrar, the respective stock exchanges, the Official Liquidator, the Competition Commission of India established under sub-section (1) of section 7 of the Competition Act, 2002 (12 of 2003), if necessary, and such other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement and shall require that representations, if any, to be made by them shall be made within a period of thirty days from the date of receipt of such notice, failing which, it shall be presumed that they have no representations to make on the proposals.

(6) Where, at a meeting held in pursuance of sub-section (1), majority of persons representing three-fourths in value of the creditors, or class of creditors or members or class of members, as the case may be, voting in person or by proxy or by postal ballot, agree to any compromise or arrangement and if such compromise or arrangement is sanctioned by the Tribunal by an order, the same shall be binding on the company, all the creditors, or class of creditors or members or class of members, as the case may be, or, in case of a company being wound up, on the liquidator [appointed under this Act or under the Insolvency and Bankruptcy Code, 2016, as the case may be,] and the contributories of the company.

(9) The Tribunal may dispense with calling of a meeting of creditor or class of creditors where such creditors or class of creditors, having at least ninety per cent. Value, agree and confirm, by way of affidavit, to the scheme of compromise or arrangement.

17 The liquidation in the present case was ordered on 29.05.2020 After preparing the Asset memorandum and obtaining valuation report, the

liquidator published the EOI on 31.01.2024 inviting prospective scheme proponents to submit their scheme under Section 230 of the Companies Act. The present application has been filed on 29.05.2025.

18 The Regulation 2B of Liquidation Rules provides that, a compromise / arrangement can be proposed under Section 230 of the Companies Act. It should be completed within 90 days from the order of the liquidation under. It was held in the case of ***Small Industrial Bank of India Vs. Delicious Coco water p v t L t d . (NCLT D e l h i) (IA.2308/ND/2022 in CP(IB)- 575(ND)/2017) and Kridhan Infrastructure Pvt Ltd. Vs. Venkatesan Sankaranarayanan (NCLAT) Company Appeal (AT) (Insolvency) No. 202 of 2020***, that 90 days period for submitting the scheme under Section 230 is directory not mandatory and the scheme can be considered after the expiry of 90 days period for value maximization of the assets. Sanction of a scheme as a facet of liquidation proceedings is also recognized in ***Arunkumar Jagatranka Vs. Jindal Steel & Power Ltd. & Anr, (2021) 7 SCC 474.***

19 Considering the terms mentioned in the EOI and the case cited supra, in the facts and circumstances of the case, we find it a fit case to condone the delay.

20 From the submissions made by, it is seen that the stakeholders have already voted to the scheme the relevant portion is extracted herein below,

S. No.	Resolution	Votes in Favour (Value %)	Votes Against (Value %)	Abstain / Did Not Vote (Value %)	Result
1	Declaration of Standard Assets India Private Limited as H1 Scheme Proponent and Approval of its Scheme	93.95%	0%	6.05%	Carried (93.95% votes in favour)
2	Declaration of Finquest Financial Solutions Private Limited as H1 Scheme Proponent and Approval of its Scheme	0%	93.95%	6.05%	Rejected (93.95% votes against)
3	Declaration of Devi Sea Foods Limited as H1 Scheme Proponent and Approval of its Scheme	0%	93.95%	6.05%	Rejected (93.95% votes against)
4	Declaration of M/s. Sravan & Co. as H1 Scheme Proponent and Approval of its Scheme	0%	93.95%	6.05%	Rejected (93.95% votes against)
5	Declaration of MRN Chamundi Canepower and Biorefineries Private Limited as H1 Scheme Proponent and Approval of its Scheme	0%	93.95%	6.05%	Rejected (93.95% votes against)

"RESOLVED THAT, pursuant to the discussions held and the final Scheme of Compromise and Arrangement placed before the SCC under Sections 230 to 232 of the Companies Act, 2013, read with Regulation 2B of the IBBI (Liquidation Process) Regulations, 2016, the Scheme submitted by Standard Assets India Private Limited, having been evaluated, be and is hereby declared as the H1 Scheme Proponent, and its Scheme is hereby approved, subject to: (a) Approval of not less than 75% in value of the Secured Financial Creditors (SFCs) of the Corporate Debtor; and (b) Final sanction of the Hon'ble NCLT, Chennai Bench.

21. It is seen that meeting for the secured financial creditors of the Jeypore sugars was held on 28.07.2025 and the e voting was held between 31.07.2025 to 15.09.2025. The list of the secured financial creditor and their voting percentage is extracted below,

S. No	Name of SFCs	% (Percentage) of Voting
1	IDBI Bank Limited	43.57
2	Bank of India	18.75
3	Pridhvi Asset Reconstruction and Securitization Company Limited	15.03
4	Bank of Baroda	10.57
5	Indian Overseas Bank	8.09
6	District Cooperative Central Bank (DCCB)	3.99
	Total	100.00

22. The result of the e voting conducted for secured financial creditor is extracted below,

S. No.	Resolution	Votes in Favour (Value %)	Votes Against (Value %)	Abstain / Did Not Vote (Value %)	Result
1	Declaration of Standard Assets India Private Limited as H1 Scheme Proponent and Approval of its Scheme	81.25%	0%	18.75%	Carried (81.25% votes in favour)
2	Declaration of Finquest Financial Solutions Private Limited as H1 Scheme Proponent and Approval of its Scheme	0%	81.25%	18.75%	Rejected (81.25% votes against)
3	Declaration of Devi Sea Foods Limited as H1 Scheme Proponent and Approval of its Scheme	0%	81.25%	18.75%	Rejected (81.25% votes against)
4	Declaration of M/s. Sravan & Co. as H1 Scheme Proponent and Approval of its Scheme	0%	81.25%	18.75%	Rejected (81.25% votes against)
5	Declaration of MRN Chamundi Canepower and Biorefineries Limited as H1 Scheme Proponent and Approval of its Scheme	0%	81.25%	18.75%	Rejected (81.25% votes against)

23. The resolution passed by the secured financial creditor is extracted below,

> "RESOLVED THAT, pursuant to the discussions held and the final Scheme of Compromise and Arrangement placed before the Secured Financial Creditors (SFCs) under Sections 230 to 232 of the Companies Act, 2013, read with Regulation 2B of the IBBI (Liquidation Process) Regulations, 2016, the Scheme submitted by Standard Assets India Private Limited, having been evaluated, be and is hereby declared as the H1 Scheme Proponent, and its Scheme is hereby approved, subject to final sanction of the Hon'ble National Company Law Tribunal, Chennai Bench.

24. From the above it is seen that the secured financial creditor and the members of corporate debtor has approved the scheme. The SCC has approved the scheme with 93.95% voting share the details of the approvals sought by the applicant is placed in 220-237 of the

application, In the instant case since the stakeholders have already voted in favour of the scheme We consider it fit to dispense with the meetings of the stakeholders of the corporate debtor under 230 of the companies act. The applicant has also placed on record the resolution passed in the meeting held and the voting results approving the scheme submitted by Standard Assets India Private Limited, in view of the above we are inclined towards dispensing the meetings of the stakeholders of the corporate debtor.

25. In case of any difficulty in the procedure, the Liquidator is given liberty to approach this Tribunal as and when required for necessary directions at the earliest without any delay.

26. The Liquidator is director to file second motion application for sanction of scheme, within the period of 7 days from the date of this order. With the above directions, This **CA(CAA)/75/2025** stands ***Allowed***.

-SD-
RAVICHANDRAN RAMASAMY
MEMBER (TECHNICAL)

-SD-
JYOTI KUMAR TRIPATI
MEMBER (JUDICIAL)

Rannika/LRA